

25NWCV04179 25NWCV04179

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-10

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Case Number: 25NWCV04179 Hearing Date: July 10, 2026 Dept: P

JOHN DOE v. CATHOLIC ARCHDIOCESE OF LOS ANGELES

CASE NO.: 25NWCV04179

HEARING: 07/10/2026 @ 9:30 AM

#19

REVISED TENTATIVE ORDER

Specially Appearing Defendants' motion to quash service

of summons and complaint and dismiss this action is GRANTED.

Moving party to give notice.

Attorneys specially appear as Does (Specially Appearing

Defendants) move for an order quashing service of summons and complaint and

dismissing this action against Catholic Archdiocese of Los Angeles, Archbishop

Jose Gomez, Saint Paul of the Cross Catholic Church, and Cardinal Roger Mahony

for lack of jurisdiction.

Background

On November 25, 2025, Plaintiff filed this action against

Defendants Catholic Archdiocese of Los Angeles, Archbishop Jose Gomez, Saint

Paul of the Cross Catholic Church, Father Michael Baker, Cardinal Roger Mahony,

and the Vatican. The complaint alleges Plaintiff "seeks redress for severe and

ongoing harm from sexual abuse by Catholic priest Father Michael Baker in 1979,

and the subsequent systemic cover-up and criminal enterprise by Defendants in

violation of California law and the Racketeer Influenced and Corrupt

Organizations (RICO) Act, 18 U.S.C. § 1962." (Complaint, ln. 29-31.) The

complaint asserts three causes of action: (1) negligence, (2) intentional

infliction of emotional distress, and (3) violation of the RICO Act, 18 U.S.C.

§ 1962.

Legal Standard

If service of process is insufficient a defendant may move

to quash service of summons on or before the last day to plead in response to

the complaint or within such further time as the court may allow for good

cause. (Code Civ. Proc., § 418.10 subd. (a)(1).)

Discussion

Specially Appearing Defendants move to quash service of

summons and complaint and dismiss this action for lack of jurisdiction. Specially

Appearing Defendants bring this motion on the grounds that there is no court

order finding a reasonable and meritorious cause of action against Specially Appearing Defendants, the Court lacks personal jurisdiction over Specially Appearing Defendants, and the Court lacks fundamental jurisdiction over the claims.

Plaintiff filed this action seeking damages as a result of alleged childhood sexual assault. As such, because Plaintiff was 40 years or older at the time of filing this action, Plaintiff is required to file certificates of merit executed by an attorney and by a licensed mental health practitioner. (Code Civ. Proc., § 340.1, subds. (f), (g).) Specially Appearing Defendants argue Plaintiff failed to file these mandatory certificates and therefore, the Court lacks personal and fundamental jurisdiction over Defendant.

In opposition, Plaintiff argues that he has complied with Code of Civil Procedure section 340.11 in good faith. Plaintiff argues that he has obtained and filed three Certificates of Merit and that his efforts demonstrate good faith compliance with the statutory requirements. Plaintiff also argues that Specially Appearing Defendants have actual notice of Plaintiff's claims and that the purpose of notice has been achieved. Further, Plaintiff contends that equitable consideration support denying this motion.

In reply, Defendant reiterates its arguments that Plaintiff

has not complied with the requirements under Code of Civil Procedure section

340.11. Defendant also notes that the requirements for a certificate of merit

applies equally to self-represented litigants. (Jackson v. Doe (2011)

192 Cal.App.4th 742, 752 [“To excuse pro per plaintiffs from the certificates

of merit requirement would create a cavernous loophole in the statute, a

loophole that would defeat its salutary goal.”].)

“In any action subject to subdivision (e), a defendant shall

not be served, and the duty to serve a defendant with process does not attach,

until the court has reviewed the certificates of merit filed pursuant to

subdivision (f) with respect to that defendant, and has found, in camera, based

solely on those certificates of merit, that there is reasonable and meritorious

cause for the filing of the action against that defendant. At that time, the

duty to serve that defendant with process shall attach.” (Code Civ. Proc., §

340.11, subd. (h).) “In the absence of a voluntary submission to the authority

of the court, compliance with the statutes governing service of process is

essential to establish that court’s personal jurisdiction over a defendant.” (Dill

v Berquist Cons. Co., Inc. (1994) 24 Cal.App.4th 1426, 1439.)

Here, Plaintiff does not provide evidence that he complied

with the certificate of merit requirements under Code of Civil Procedure

section 340.11.

The Court briefly notes that Code of Civil Procedure section 340.1, subdivision (j) provides: “The failure to file certificates in accordance with this section shall be grounds for a demurrer pursuant to Section 430.10 or a motion to strike pursuant to Section 435.” (Code Civ. Proc., § 340.1, subd. (l); Doe v. San Diego-Imperial Council (2015) 239 Cal.App.4th 81, 87 [“[T]he Legislature’s act of designating a demurrer and motion to strike as the means to challenge a plaintiff’s failure to file the required certificate indicates it “ ‘view[ed] the certificates as an aspect of the complaint.’”].) Specially Appearing Defendants do not establish authority that a motion to quash service of summons is the proper motion compared to that established in Code of Civil Procedure section 340.1.

However, “[a] demurrer may be sustained without leave to amend where plaintiff fails to file the certificates of merit in accordance with section 340.1, subdivision (h) before the statute of limitations expires or within 60 days of filing the complaint.” (Jackson, supra, 192 Cal.App.4th at p. 752.) In considering substance over form, the effect of the instant motion is the same as if Specially Appearing Defendants had brought a demurrer based on the same argument.

Accordingly, Specially Appearing Defendants’ motion to quash

and dismiss for lack of personal jurisdiction is GRANTED.